

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

----- X

BRANDON MALLOY, PATRICIA MALLOY,
GLENN BETHEA, and DHUHA BROWN,

Plaintiffs,

Index No.:

- against -

CITY OF NEW YORK, and JOHN DOES 1-5,

SUMMONS

Venue is designated in
Kings County

Defendants.

----- X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon the attorneys for plaintiffs an Answer to the Complaint in this action within 20 days after service of this Summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York). In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is CPLR §§ 503 and 504, as the plaintiff is a resident of Kings County, which is also the county in which the events at issue occurred.

Dated: New York, New York
October 15, 2019

LUMER LAW GROUP
Attorneys for Plaintiffs

By:



Michael Lumer, Esq.
305 Broadway, Suite 1400
New York, New York 10007
(212) 566-5060

Defendants' Addresses:

The City of New York
Office of the Corporation Counsel
100 Church Street
New York, New York 10007

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

----- X
BRANDON MALLOY, PATRICIA MALLOY,
GLENN BETHEA, and DHUHA BROWN,

Plaintiffs,

Index No.:

- against -

VERIFIED COMPLAINT

CITY OF NEW YORK, and JOHN DOES 1-5,

Defendants.

----- X

Plaintiffs BRANDON MALLOY, PATRICIA MALLOY, GLENN BETHEA, and
DHUHA BROWN, by their attorneys, the Lumer Law Group, hereby allege upon
information and belief as follows:

1. At all times hereinafter mentioned, plaintiff BRANDON MALLOY was an adult resident of Kings County, in the City and State of New York.
2. At all times hereinafter mentioned, plaintiff PATRICIA MALLOY was an adult resident of Kings County, in the City and State of New York.
3. At all times hereinafter mentioned, plaintiff GLENN BETHEA was an adult resident of Kings County, in the City and State of New York.
4. At all times hereinafter mentioned, plaintiff DHUHA BROWN was an adult resident of Kings County, in the City and State of New York.
5. At all relevant times hereinafter mentioned, defendant City of New York (the “City”) was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and

agents, including but not limited to, the New York City Police Department (“NYPD”) and its employees and agents.

6. At all relevant times hereinafter mentioned, defendants John Doe 1-5, were individuals employed by the City as members of the NYPD whose identities are unknown to plaintiff at this time. The Doe defendants are sued herein in their individual capacity.

7. A Notice of Claim was timely served by the plaintiff upon the defendant City of New York.

8. The City of New York subsequently conducted an examination of the plaintiffs pursuant to General Municipal Law §50-H, with the exception of plaintiff Bethea, who was unexpectedly unable to appear for his examination. The municipal defendant refused to reschedule his examination despite a request from plaintiffs, and thereby waived his examination..

9. At least thirty days have passed since service of plaintiff’s Notice of Claim, and adjustment and payment thereof has been neglected or refused by the City of New York.

10. Plaintiff has complied with all obligations, requirements, and conditions precedent to commencing an action against New York City under New York law.

11. During the early morning hours of September 6, 2018, plaintiffs Brandon and Patricia Malloy, as well as Glenn Bethea, were present inside 469 East 25 Street in Brooklyn, New York (the “premises”).

12. As of September 6, 2018, the Malloys and Bethea rented separate rooms on different floors in the Premises.

13. During those early morning hours of September 6, 2018, various members of law enforcement, including members of the NYPD and the Doe defendants (also referred to herein as the “individual defendants”), forcibly entered the premises, and seized and handcuffed the Malloys and Bethea, as well as other individuals they encountered on the front porch of the Premises, at gunpoint.

14. Plaintiff Brown was outside of, and in the process of walking away from the premises when he too was seized by the defendants and taken into custody.

15. At the time of their seizure, there was no probable cause that would justify the seizure or arrest of the plaintiffs, nor was there a reasonable basis to believe the seizures or arrests were lawful or otherwise legally permissible.

16. At the time of their arrest, plaintiffs had not engaged in, and were not engaging in any unlawful conduct, or any conduct that could reasonably be viewed as unlawful.

17. Despite the continuing absence of sufficient legal cause to justify the initial seizures, much less their arrests, the plaintiffs were nonetheless arrested, handcuffed, and transported to a local NYPD station house, where they were jailed against their will for a period of time.

18. The plaintiffs were eventually taken to Central Booking, where they were further jailed for a period of many hours.

19. While plaintiffs were still in defendants’ custody, the individual defendants completed arrest paperwork in which they claimed that plaintiffs had engaged in criminal conduct.

20. These general allegations were communicated to prosecutors at the Kings County District Attorney (“KCDA”), were materially false and the individual defendants were aware at all times that the allegations were false.

21. The individual defendants either jointly participated in the creation of this arrest paperwork or were otherwise aware that the other individual defendant was creating or causing the creation of this paperwork.

22. The decision to arrest the plaintiff, the fabrication of allegations of criminal conduct and the surrounding circumstances, and the communication of the manufactured and otherwise materially inaccurate and misleading factual claims, were made jointly by the individual defendants, or with each other’s knowledge and acquiescence, to justify plaintiff’s unlawful arrest and persuade the KCDA to commence plaintiffs’ criminal prosecution.

23. To the extent that each or any of the individual defendants did not personally, affirmatively participate in said conduct, each defendant was aware that such conduct was occurring and would continue to occur, and deliberately and consciously failed to intervene in such conduct, despite ample opportunity to do so.

24. The individual defendants are therefore equally liable for the arrest and imprisonment of each plaintiffs, because of their personal actions and their deliberate failure to intervene in the other’s unconstitutional conduct, and thus they were, at all relevant times herein, acting jointly and in concert.

25. The KCDA, despite defendants’ best efforts to bring about plaintiffs’ criminal prosecution, declined to prosecute the four plaintiffs (as well as at least two of the people arrested outside the premises).

26. The plaintiffs were eventually released from defendants custody, but not until after a period of many hours had passed.

27. That at all times relevant herein, the defendants were on duty and acting within the scope of their employment, and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

FIRST CAUSE OF ACTION

(Violation of Civil Rights Pursuant to 42 USC §1983)

28. Plaintiffs BRANDON MALLOY, PATRICIA MALLOY, GLENN BETHEA, and DHUHA BROWN repeat and reallege each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

29. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of law.

30. All of the aforementioned acts deprived plaintiffs of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

31. The acts complained of were carried out by the individual defendants in their capacity as police officers, with all the actual and/or apparent authority attendant thereto, and pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

32. The individual defendants, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the NYPD and thereby the City of New York, which is forbidden by the Constitution of the United States.

33. The acts complained of deprived plaintiffs of their right:

- a. not to be deprived of liberty without due process of law;
- b. to be free from excessive;
- c. to be free from seizure and arrest absent probable cause;
- d. to receive equal protection under the law; and,
- e. to be free from unwarranted and malicious criminal prosecution.

34. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiffs to suffer physical and emotional injuries, mental anguish, loss of liberty, and the loss of their constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

SECOND CAUSE OF ACTION

(False Arrest and Imprisonment and
Denial of a Fair Trial Pursuant to 42 USC §1983)

35. Plaintiffs BRANDON MALLOY, PATRICIA MALLOY, GLENN BETHEA, and DHUHA BROWN repeat and reallege each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

36. The individual defendants willfully and intentionally seized, arrested, and caused plaintiffs to be imprisoned without any lawful basis, much less probable cause, and lacked any reasonable basis to believe probable cause existed.

37. To the extent that any of the individual defendants did not affirmatively seize or place plaintiffs under arrest, each such defendant was aware that plaintiffs' constitutional rights were being and would continue to be violated, and failed to take any steps to intervene in said unconstitutional conduct or otherwise protect plaintiffs from harm, despite ample opportunity to do so.

38. As a result of their unlawful arrest by the defendants, plaintiffs were imprisoned and deprived of their liberty.

39. Plaintiffs were conscious of the deprivation of their liberty and did not consent to any such deprivation.

40. The individual defendants fabricated and withheld material evidence, and misled prosecutors in order to manufacture a justification for the initial seizure of the plaintiffs, as well as justify their subsequent decision to arrest and imprison them, despite the absence probable cause.

41. The individual defendants forwarded the fabricated evidence to the KCDA or otherwise knowingly caused the KCDA to be materially misled as to the true circumstances and facts surrounding the seizure and arrest of the plaintiffs, did so with the intent of bringing about and sustaining plaintiffs' criminal prosecution despite their knowledge that there was no probable cause to justify said prosecution, and in so doing caused plaintiffs to be deprived of their liberty.

42. To the extent that any of the individual defendants did not affirmatively seize or place plaintiffs under arrest, or fabricate evidence or engage in direct communications with the KCDA as alleged herein, said defendant was aware that the other individual defendant was or would be engaged in this unconstitutional conduct, and that plaintiffs' constitutional rights were being and would continue to be violated, and yet failed to take any steps to intervene in said unconstitutional conduct or otherwise protect plaintiffs from harm, despite ample opportunity to do so.

43. The individual defendants, individually and collectively, subjected plaintiffs to (i) false arrest and imprisonment, and (ii) denial of due process and the right to a fair trial through the fabrication of evidence, thereby violating, or aiding and abetting in the violation of, plaintiffs' rights under the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution.

44. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiffs to suffer physical and emotional injuries, mental anguish, loss of liberty, and the loss of their constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

THIRD CAUSE OF ACTION

(State Law Claims for False Arrest and Imprisonment)

45. Plaintiffs BRANDON MALLOY, PATRICIA MALLOY, GLENN BETHEA, and DHUHA BROWN repeat and reallege each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

46. Plaintiffs were subjected to false arrest and false imprisonment when they were intentionally, willfully, maliciously, and/or with reckless disregard, seized, searched, and arrested without probable cause by the individual defendants, and then imprisoned against their will until the KCDA directed that they be released from custody.

47. The individual defendants are liable to plaintiff under state law, for false arrest and imprisonment.

48. The municipal defendant, the City of New York, is vicariously liable for the acts of the individual defendants, who were at all relevant times herein acting within the scope of their employment as subordinate officers and agents of the municipal defendant, and thus the municipal defendant is liable to the plaintiffs for the aforementioned bad acts of its agents and under state law, including false arrest and imprisonment.

49. By reason thereof, the City of New York and the individual defendants have caused plaintiffs to suffer emotional and physical injuries, mental anguish, lost earnings, imprisonment and the deprivation of liberty, as well as the loss of their civil rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages from the individual defendants in a sum to be determined at trial.

WHEREFORE, the plaintiffs demands judgment against defendants jointly and severally as follows:

- i. actual and compensatory damages against each defendant in an amount to be determined at trial;
- ii. punitive damages against each individual defendant in an amount to be determined at trial;
- iii. statutory attorney's fees pursuant to, *inter alia*, 42 U.S.C. §1988 and New York common law, disbursements, and costs of the action; and,
- iv. such other relief as the Court deems just and proper.

Dated: New York, New York
October 15, 2019

LUMER LAW GROUP
Attorneys for Plaintiffs

By: _____



Michael Lumer, Esq.
305 Broadway, Suite 1400
New York, New York 10007
(212) 566-5060